

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2026CUOE061066: ROBERT O. ARANDA vs LIBERTY LIFT SOLUTIONS, LLC, A
LIMITED LIABILITY COMPANY
06/24/2026 in Department 41
Demurrer**

Below is the Court's tentative decision with respect to the matter on calendar. The Court may adopt, modify, or change the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

If you wish to submit on the Court's tentative decision without appearing, please send an email to the following address by 8:00 a.m. on the date of the hearing with counsel for all parties' copied on your email: courtroom41@ventura.courts.ca.gov Please state on the subject line of your email: "SUBMISSION ON TENTATIVE", Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative decision is subject to change.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

If you are an attorney or Pro Per and your case is on calendar, you can appear remotely by Zoom for Case Management Conferences and Law & Motion matters. You cannot appear remotely for trials or any matter where testimony or evidence is going to be admitted. This court no longer allows remote appearances by CourtCall. Zoom is the exclusive means by which counsel can appear remotely. Represented parties, interested persons, witnesses, and the public at large, cannot attend remotely. You cannot forward the Court's Zoom link to others so that they can attend remotely. Courtroom 41 is open to the public and such individuals can attend

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by physically appearing in the courtroom. **While appearing remotely by Zoom, it is unlawful to video or audio record the proceedings or take screen shots/still photos of the proceedings.**

To appear remotely by Zoom, you must submit an email request to the Court by 4 p.m. the court day before your hearing to: courtroom41@ventura.courts.ca.gov, with a subject line that includes “NOTICE TO APPEAR VIA ZOOM.” Your email request must identify the name of the attorney/party who will appear by Zoom and all counsel/parties must be copied on your email request. When appearing by Zoom, you will need to mute yourself until your case is called at which point you will also have to turn on your camera. The court calendar begins at 9 a.m. Assuming you have given advance email notice the court day before your hearing of your intent to appear by Zoom, you may enter the Courtroom 41 Zoom waiting room at 8:15 a.m. on the day of your hearing through this link:

<https://ventura-courts-ca.zoom.us/j/81985625079?pwd=cHV2MENmWGNLSnJCMIM5Sk1xRk0vdz09>

For information about Judge DeNoce including his case management and trial rules, please visit: www.DeNoce.com

Tentative Decision:

The court intends to sustain the demurrer with leave to amend.

Defendant Liberty Lift Solutions, LLC’s Demurrer to Plaintiff’s Complaint is SUSTAINED WITH LEAVE TO AMEND as to the fourth cause of action for intentional infliction of emotional distress. (Code Civ. Proc., § 430.10, subd. (e).) Plaintiff has failed to plead facts showing that Defendant’s conduct was sufficiently outrageous so as to support a viable claim for intentional infliction of emotional distress. The allegations of discrimination and retaliation are insufficient to support such a cause of action as a matter of law. (*Alcorn v. Anbro Engineering, Inc.* (1970) 2 Cal.3d 493; and *Janken v. GM Hughes Electronics* (1996) 46 Cal.App.4th 55, 80.) Since it is possible Plaintiff could plead around this defect, leave to amend is granted.

Amended Complaint to be filed within 20 days.